

with an upper limit, and a preferred disclosed narrower range – equally consisting of a lower limit which is unequivocally combined with an upper limit – were simply missing. Even a kind of parallel structure in indicating the upper and lower limits (less/at least, preferred or more preferred) implied **no unequivocal correlation between a particular upper limit and a particular lower limit** because there was no teaching that such an arrangement was intended. Therefore, one of the upper limits mentioned in the first sentence in the description of the parent application as originally filed (as cited above) and one of the lower limits mentioned in the second sentence were arbitrarily combined, which did not represent a direct and unambiguous disclosure.

- d) Combination of an end point of a range with a value from a list of individually disclosed values

In T 1320/13 claim 1 defined a specific ratio in the range of "between 0.6 and 1". The appellant argued that the range had a basis in the disclosure of the range "0.1 and about 1" in claim 5 in conjunction with the value "0.6" disclosed in a **list of individual values**, which read: "about 1.0, 0.9, 0.8, 0.7, 0.6, 0.5, 0.4, 0.3, 0.2, 0.1 or even 0, derivable therein". The board held that T 2/81 did not apply in the case at issue. The skilled person would not regard the list of individually disclosed values of ratios on page 5 of the application as individual end points of ranges. Firstly, a list of individual values – even if disclosed as here in descending order – did not relate to values that lie between them, while a range necessarily encompasses all the values that lie between its two disclosed end points, i.e. a list of individual values is conceptually different from a range. Secondly, the list contained no pointers to a particular combination of ratio values. Accordingly, a specific selection of values also did not clearly and unambiguously emerge for the skilled person from the content of the application.

- e) Combination of end points of different levels of preference for several aspects of a composition

In T 948/13 the subject-matter of claim 1 of auxiliary request 3 had been generated by combining a number of numerical ranges of different levels of preference (general range, most preferred range) for various aspects of the composition. The board held that the selection of these ranges in combination was neither disclosed as such nor otherwise suggested in the application as originally filed.

For a further case in which each of the added features (including ranges of parameters) were, in the board's view, disclosed in the application as filed, though not in combination, see e.g. T 1853/13 (with regard to claim 1 of auxiliary request 2).

In T 2514/16, the board considered it allowable to combine thresholds from different levels of preference (see the summary in chapter II.E.1.5.1a) above). It also found that combining this limitation with a second amendment (limiting the amount of metal cation with end points in line with the most preferred embodiment) was directly and unambiguously derivable from the original application. It noted that the two amendments amounted to a limitation of a feature that had already been present in original claim 2, with both features

characterising the salt that was necessarily used in the claimed method (see also the summary in chapter II.E.1.6.1c) below).

f) Peptide fragments

In T.703/16 the board held that a peptide fragment constituted a discrete physical entity, made up of individual amino acids and having defined physical end points, which was not comparable to a range of a quantitative parameter within which the invention can be performed (distinguishing its case from T.2/81 and T.1063/96).

1.5.2 Forming a range with isolated value taken from example

a) Principle

In T.201/83 (OJ 1984, 481) the board came to the conclusion that the amendment of the concentration range for a claimed mixture, such as an alloy, was admissible on the basis of a value described in a specific example, provided that the skilled person could have readily recognised that this value was **not so closely associated with the other features of the example** as to determine the effect of that embodiment of the invention as a whole in a unique manner and to a significant degree. In the case at issue, the new limit could be deduced from the original documents.

As pointed out in T.1556/16, limiting an originally disclosed broader range using an isolated value taken from an example may be allowed, if it does not present the skilled person with information that goes beyond the content of the original disclosure. In the case in hand, after a detailed analysis of the application's disclosure, as understood by the skilled person, the board held that the skilled person was not presented, by the particular selection, with new information.

b) Amendment allowed

The board in T.876/06 applied the principle established in T.201/83 and came to the conclusion that the skilled person could have recognised in the application as originally filed that the weight ratio of liquid rubber to solid rubber was not so closely associated with the other features of the examples as to determine the effect of the invention as a whole in a unique manner and to a significant degree. Thus, it was permissible to use the particular value used in several examples to limit the range of the weight ratio of liquid rubber to solid rubber. The limitation of the claim represented merely a quantitative reduction of a range to a value already envisaged within the document and not an arbitrary restriction providing a technical contribution to the subject-matter of the claimed invention.

In T.1188/10 the new range of 0,006% to 0,015% was formed by taking, as end points, single values from examples 2 and 4 relating to the use of LAE as preservative in two different specific food products at different growth temperatures. In order to assess whether this new range complied with Art.123(2) EPC it had to be considered whether a skilled person, in analogy to T.201/83, would generalise these values in the sense that he would recognise them as not only associated with the specific food products and

temperatures used in the examples. In the case at issue, this was the case so that the range claimed complied with Art. 123(2) EPC.

For a further decision, where the board considered that the values taken from the examples and used as the end points of the claimed range could not be seen only in the context of all the other parameters given there, see T 343/90, in which the relevant amendment complied with Art. 123(2) EPC.

c) Amendment not allowed

In T 526/92 the board held that if values of a parameter are only given in the examples (as single, punctate values), without the significance of this parameter becoming evident from the original specification, no range must be arbitrarily formed, which is open ended at one side and has one limit selected from the examples.

Similarly in T 1004/01, according to the board, the exemplified laminates and the peel strength thereof were disclosed only in a concrete technical context, without providing any preference for the claimed open ended range taking the exemplified parameter value as lower limit (peel strength "of at least 24 grams").

Decision T 526/92 was approved and cited by T 931/00 – also referring to T 201/83 (OJ 1984, 481) – which concerned the creation of a new parameter range by defining its upper limit by selecting a single value from an example. The board in T 931/00 stated that although figures in examples might, under specific conditions, be used to limit a range which was already present in the original application, they could not be used to define an **entirely new relationship between parameters** which had never been linked before. Such arbitrary new links between existing parameters introduced new matter, contrary to the requirements of Art. 123(2) and Art. 100(c) EPC 1973.

The board in T 1146/01 had to answer the question of whether one measurement of a selected characteristic or property of a sample disclosed only in an individual example could be relevant to the generality of the claimed subject-matter, separately from and irrespectively of the other parameters inherent to the same sample. The board distinguished this case from T 201/83. Formulating a new range on the basis of individual values taken from selected examples, which were **not at all directly related to each other**, meant that the reader was confronted with new information not directly derivable from the text of the application as originally filed.

In T 184/05 the board held that an impurity concentration value of a product obtained under specific process conditions could not be taken in strict isolation from the examples unless it had been demonstrated that this value was not so closely associated via the applied process with specific (undisclosed) maximum values of all other impurities comprised in the product. In the case in hand this was not the case.

In T 570/05 the proposed amendment was that the coating layer had a "thickness of from 220 to 500 nm", for which the only literal basis in the application as originally filed for the lower value of 220 nm was to be found in three examples; nowhere in the documents

as filed did this value form the lower (or indeed any) end point of a range of thicknesses. Recalling the relevant case law namely, T.201/83, T.1067/97 and T.714/00 (see also in this chapter II.E.1.9. "Intermediate generalisations"), dealing with extracting an isolated feature, the board examined whether or not there existed a **functional or structural relationship** between the coating layer thickness, in particular its lower limit, and the remaining features of the claim. The board concluded that the condition of absence of any clearly recognisable functional or structural relationship was not satisfied in the present case.

In T.517/07 a newly introduced upper limit had been disclosed in the original application documents only as an isolated value in example 1. The board decided that **singling out** an individual value from a specific embodiment and applying it as a new upper limit in claim 1 created a new – now capped – value range that was not disclosed in the original documents.

1.5.3 Setting new end point with not expressly disclosed value – "less than", "below" and rounding values

T.985/06 concerned amending the upper limit of a range, supported in the description as filed, to a new (lower) value not thus supported, by changing it from "1.05:1 to 1.4:1" to "1.05:1 to less than 1.4:1". The board acknowledged that "1.05:1 to 1.4:1" included all values within the stated range. However, the application as filed disclosed only the range in general; it did not specifically, and thus directly and unambiguously, disclose all values within it. The amendment therefore contravened Art.123(2) EPC.

In T.1990/10 the board had to decide whether the application as filed provided a basis for the temperature range "below 35°C" in claim 1. The application as filed disclosed various temperatures, both specific temperature values ("30°C") and temperature ranges, such as open-ended ranges ("below 37°C") and closed ranges with defined upper and lower-end values ("30°C to 35°C"). The board considered that the term "below" was explicitly disclosed only for defining the broadest mentioned temperature range, namely "below 37°C". The board held that "below 35°C" was also not implicitly derivable from the broadest open-ended range "below 37°C" in combination with the upper-end value of the closed range "30°C to 35°C". Applying the criteria of T.2/81, the combination of the lower-end and the upper-end values of the closed range with the broadest temperature range would result in the temperature ranges "30°C to below 37°C" and "35°C to below 37°C", not however, in the open-ended temperature range "below 35°C". In addition, the closed temperature range "30°C to 35°C" included the specific temperature "35°C" whereas the open-ended range "below 35°C" in claim 1 explicitly excluded this value.

In T.83/13 claim 1 as granted included the feature "an amount of less than 15% by weight", whereas the claim as filed and the original description had mentioned amounts of between 5% and 20% and between 8 and 15%. In the board's view, the wording "an amount of less than 15% by weight" included concentration values differing by one or more decimal places from which, depending on the precision of the measurement method or simply by applying rounding rules, the whole value of "15% by weight" could be arrived at. Replacing the concentration value of "15.0% by weight" with "an amount of less than 15%

by weight" did not change the technical teaching or constitute a new technical function in relation to the claimed concentration range; from a technical perspective, the scope of protection remained the same even after the amendment (see T 112/10). The board added that its decision was consistent with the boards' case law on novelty and rounding values (see T 234/09 or T 1186/05).

In T 1986/14 claim 6 of the main request was amended by including the features "glycerin in an amount ranging from 50% to 90% by weight of the composition". The appellant argued that the amount of glycerin in claim 6 found a basis in the application as originally filed, which read "glycerin moisturizer can be present individually in an amount ranging from about 50.00% to about 90.00% by weight". The board held that it was undisputed that 50% and 50.00% differed in their accuracy. For this reason, the values 50.00% and 90.00%, on their own, could not provide a basis for the features 50% or 90%. The applicant argued, however, that the use of the term "about" in the passage mentioned above indicated that it was not intended to restrict the claimed amount to ranges defined by end points with four significant figures. For the board, the feature "about 50.00% to about 90.00%" disclosed a range with two end points, namely 50.00% and 90.00%, and an area of undefined boundaries around them. No other end point, such as 50% or 50.0%, was either implicitly or explicitly disclosed.

In T 2203/14, the upper limit of the range relating to the thickness of the corrosion resistant layer in claim 1 as filed "approximately 5 microns" was amended to "approximately 5.0 micrometers" in view of prior art disclosing a value of 5.2. The board recalled that according to case law, when comparing a value from the state of the art with a claimed value, the state of the art value had to be given the same accuracy as the one claimed (citing T 871/08 of 8 December 2011, and T 175/97). Therefore, "approximately 5.0" and "approximately 5" could – in the case at issue – not have the same meaning. The application as filed consistently mentioned only the value of 5 micrometers for the corrosion resistant layer. The fact that the upper limit of another layer in the application as filed was given as 5.0 and 5 had no bearing on the value at issue since the two layers were not linked to such a degree that a certain accuracy for one layer would inevitably imply the same accuracy for the other layer. The board concluded that the amended value "approximately 5.0" was not directly and unambiguously derivable from the application as filed.

1.6. Combination of features pertaining to separate embodiments or lists

1.6.1 Combination of features pertaining to separate embodiments; application as filed is not a "reservoir"

a) Principles

The content of an application must not be considered to be a reservoir from which features pertaining to separate embodiments of the application could be combined in order to **artificially create a particular embodiment** (T 296/96, T 686/99, T 1206/01, T 3/06, T 1206/07, T 1041/07, T 1239/08, T 1648/11, T 1799/12, T 1853/13, T 1775/14). In the absence of any **pointer** to that particular combination, this combined selection of features